

IN THE SENATE

SENATE BILL NO. 1222

BY RESOURCES AND ENVIRONMENT COMMITTEE

AN ACT

RELATING TO DOMESTIC WELLS; AMENDING SECTION 42-111, IDAHO CODE, TO REVISE DEFINITIONS AND TO DEFINE TERMS; AMENDING SECTION 42-227, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE DRILLING AND USE OF WELLS FOR DOMESTIC PURPOSES; AMENDING SECTION 31-3805, IDAHO CODE, TO REVISE A PROVISION REGARDING THE APPLICABILITY OF LAW RELATED TO WATER DELIVERY WITHIN SUBDIVISIONS; AMENDING SECTION 50-1334, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE REVIEW OF WATER SYSTEMS; AND DECLARING AN EMERGENCY.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 42-111, Idaho Code, be, and the same is hereby amended to read as follows:

42-111. DOMESTIC PURPOSES DEFINED. (1) For purposes of sections 42-221, 42-227, 42-230, 42-235, 42-237a, 42-242, 42-243, and 42-1401A, Idaho Code:

~~(a) The phrase "domestic purposes" or "domestic uses" means:~~

(a) (i) "Domestic purposes" or "domestic uses" means:

~~(i) 1.~~ 1. The use of water for homes, organization camps, public campgrounds, livestock, and for any other purpose in connection therewith, including irrigation of up to one-half (1/2) acre of land, if the total use does not exceed thirteen thousand (13,000) gallons per day; or

~~(ii) 2.~~ 2. The use of water for any other purpose, if the total use does not exceed a diversion volume of two and eight-tenths (2.8) acre feet per year.

~~(b) (ii) "Domestic purposes" or "domestic uses" shall not include water for the following purposes, unless the use meets the diversion rate and volume limitations set forth in paragraph (a) (i) 2.~~
of this subsection:

~~(i) 1.~~ 1. Mobile home parks or recreational vehicle parks;

~~(ii) 2.~~ 2. Apartments, condominiums, and similar developments with multiple dwelling units;

~~(iii) 3. Except Subdivisions, except as provided in subsection (3) of this section, subdivisions, as defined in chapter 13, title 50, Idaho Code; or~~

~~(iv) 4.~~ 4. Commercial or business establishments or mixed-use establishments where the water is used primarily for commercial or business purposes.

(b) "In-home use" means the utilization of water within a residence or household, including all activities that require water, such as drinking, cooking, bathing, and cleaning within and around the household. It

1 does not include irrigation of lawns, gardens, landscaping, pastures,
2 or other open spaces.

3 (c) "Subdivision" means a tract of land divided into five (5) or more
4 lots, parcels, or sites for the purpose of sale or building development,
5 whether immediate or future; provided that this definition shall not
6 include a bona fide division or partition of agricultural land for agri-
7 cultural purposes. For purposes of this paragraph, "bona fide division
8 or partition of agricultural land for agricultural purposes" means the
9 division of land into lots, all of which are five (5) acres or larger and
10 maintained as agricultural lands.

11 (2) Except as provided in subsection (3) of this section, multiple wa-
12 ter rights for domestic uses or domestic purposes shall not be established or
13 exercised in a manner to satisfy a single combined water use or purpose that
14 would not itself come within the definition of a domestic use or purpose un-
15 der this section. The purpose of this limitation is to prohibit the diver-
16 sion and use of water, under a combination of domestic purposes or domestic
17 uses as defined in this section, to provide a supply of water for a use that
18 does not meet the exemption of section 42-227, Idaho Code, and is required
19 to comply with the mandatory application and permit process for developing a
20 right to the use of water pursuant to chapter 2, title 42, Idaho Code.

21 (3) Multiple water rights for domestic purposes or uses may be estab-
22 lished and exercised from the same point or points of diversion if the use
23 is limited to residential, in-home use. This subsection does not affect any
24 other permitting requirement or other requirement that may apply to the use
25 of water within a subdivision. ~~For the purposes of this section, the term~~
26 ~~"in-home use" means the utilization of water within a residence or house-~~
27 ~~hold, including all activities that require water, such as drinking, cook-~~
28 ~~ing, bathing, and cleaning within and around the household. It does not in-~~
29 ~~clude irrigation of lawns, gardens, landscaping, pastures, or other open~~
30 ~~spaces.~~

31 SECTION 2. That Section 42-227, Idaho Code, be, and the same is hereby
32 amended to read as follows:

33 42-227. DRILLING AND USE OF WELLS FOR DOMESTIC PURPOSES EXCEPTED. (1)
34 Except as provided in subsection (4) of this section, excavation and opening
35 of wells and the withdrawal of water therefrom for domestic purposes or uses
36 as defined in section 42-111, Idaho Code, shall not be subject to permit re-
37 quirements under section 42-229, Idaho Code. Rights to ground water for such
38 domestic purposes may be acquired by withdrawal and use.

39 (2) Wells and withdrawal devices for domestic purposes or uses shall be
40 subject to inspection by the department of water resources and the depart-
41 ment of environmental quality.

42 (3) Well drillers shall be licensed pursuant to the licensing provi-
43 sions of section 42-238, Idaho Code.

44 (4) For purposes of new diversions for use within subdivisions, as de-
45 defined in chapter 13, title 50, Idaho Code, section 42-111, Idaho Code, where
46 the completed application to develop the subdivision is filed pursuant to
47 chapter 65, title 67, Idaho Code, on or after July 1, 2025, in any area where
48 the director of the department of water resources has issued a moratorium
49 order on the development of new water rights or has designated a critical

1 ground water area or ground water management area, ~~an application for a per-~~
 2 ~~mit,~~ pursuant to section 42-229, Idaho Code, shall be required for the di-
 3 version of water for any new domestic purposes or uses, as defined in sec-
 4 tion 42-111, Idaho Code, other than for in-home uses, as defined in section
 5 42-111, Idaho Code, or watering livestock.

6 SECTION 3. That Section 31-3805, Idaho Code, be, and the same is hereby
 7 amended to read as follows:

8 31-3805. DELIVERY OF WATER WITHIN SUBDIVISIONS. (1) The provisions of
 9 this section shall apply to any ~~proposed~~ subdivision, as defined in chapter
 10 13, title 50, Idaho Code, within the state of Idaho or to a subdivision sub-
 11 ject to a more restrictive county or city zoning ordinance. A completed ap-
 12 plication to develop a subdivision filed pursuant to chapter 65, title 67,
 13 Idaho Code, that was filed on or before June 30, 2025, is governed by the law
 14 as it existed at the time of filing.

15 (2) For any subdivision that lies within the service area or area of
 16 city impact of a municipal provider, the following requirements apply:

17 (a) If a shared well or public water system is installed, it shall be
 18 designed to meet requirements of that municipal provider and be planned
 19 to integrate with and connect to the municipal provider's system when
 20 appropriate. The requirements of this paragraph shall not apply if an
 21 agreement is reached with the municipal provider;

22 (b) The municipal provider shall be consulted in the design of the
 23 shared well or public water system to ensure proper integration; and

24 (c) Upon connection to the municipal provider's system, the water
 25 rights associated with the subdivision's shared well or public water
 26 system shall be conveyed to the municipal provider.

27 (3) If surface water for irrigation is reasonably available to all or
 28 any part of a subdivision, as provided in section 67-6537, Idaho Code, then
 29 no subdivision plat, amendment to a subdivision plat, or any other plat or
 30 map recognized by the city or county for the division of land will be ac-
 31 cepted, approved, and recorded unless the owner or entity has provided for
 32 the irrigation of lots within the subdivision using the available surface
 33 water.

34 (4) For subdivisions using water provided by an irrigation entity, as
 35 required by section 67-6537, Idaho Code, the subdivision plat or with the
 36 plat mat as an exhibit shall include a description of the system used to de-
 37 liver irrigation water from the irrigation entity's point of delivery to the
 38 individual lots. In such cases:

39 (a) For proposed subdivisions within the incorporated limits of a city,
 40 the irrigation system must be approved by the city zoning authority or
 41 the city council, as provided by city ordinance, with the advice of the
 42 irrigation entity charged with the delivery of water to such lands; and

43 (b) For proposed subdivisions located outside an incorporated city,
 44 the irrigation system must be approved by the board of county commis-
 45 sioners, with the advice of the irrigation entity charged with the
 46 delivery of water to such lands.

47 (5) For subdivisions receiving water from an irrigation entity, the
 48 subdivision plat or amendment to a subdivision plat shall contain notes
 49 stating the following:

1 (a) That the subdivision or a portion of it is located within the ser-
 2 vice area of the irrigation entity and the name and contact information
 3 for the irrigation entity;

4 (b) That a system for the delivery of irrigation water to lots within
 5 the subdivision has been provided;

6 (c) That the system has been approved as required by subsection (4) of
 7 this section;

8 (d) That the purchaser of each lot shall remain subject to all assess-
 9 ments levied by the irrigation entity; and

10 (e) That unpaid irrigation entity assessments are a lien on the land
 11 within the irrigation entity.

12 SECTION 4. That Section 50-1334, Idaho Code, be, and the same is hereby
 13 amended to read as follows:

14 50-1334. REVIEW OF WATER SYSTEMS ENCOMPASSED BY PLATS. Whenever any
 15 plat is subject to the terms and requirements of sections 50-1326 through
 16 50-1329, Idaho Code, no person shall offer for recording, or cause to be
 17 recorded, a plat unless he or she shall have certified that he or she is in
 18 compliance with section 31-3805(2), Idaho Code, ~~where applicable,~~ and that
 19 at least one (1) of the following is the case:

20 (1) The individual lots described in the plat will not be served by any
 21 water system common to one (1) or more of the lots, but will be served by indi-
 22 vidual wells.

23 (2) All of the lots in the plat will be eligible to receive water service
 24 from an existing water system, be the water system municipal, a water dis-
 25 trict, a public utility subject to the regulation of the Idaho public utili-
 26 ties commission, or a mutual or nonprofit water company, and the existing wa-
 27 ter distribution system has agreed in writing to serve all of the lots in the
 28 subdivision.

29 (3) If a new water system will ~~come into being~~ be developed to serve the
 30 subdivision, ~~that it~~ the entity in charge of that system has or will have suf-
 31 ficient contributed capital to allow the water system's wells, springboxes,
 32 reservoirs, and mains to be constructed to provide service without further
 33 connection charges or fees ~~to the landowners of the lots required to lot own-~~
 34 ~~ers,~~ except for connection of laterals, meters or other plant exclusively
 35 for the lot owner's own use.

36 Failure to comply with this section is a misdemeanor subject to the
 37 provisions of section 50-1329, Idaho Code. The certification must be filed
 38 or recorded as part of the plat document preserved for public inspection.
 39 ~~Property Lot owners in the area encompassed by the plat will~~ subdivision
 40 shall be entitled to the benefits of the third provision subsection (3) of
 41 this section when that option is chosen.

42 SECTION 5. An emergency existing therefor, which emergency is hereby
 43 declared to exist, this act shall be in full force and effect on and after its
 44 passage and approval.